

HOUSE SUBSTITUTE FOR
SENATE BILL NO. 205

A bill to amend 1978 PA 368, entitled
"Public health code,"
(MCL 333.1101 to 333.25211) by adding section 10401.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 10401. (1) A physician's private practice office or an
2 urgent care center may do both of the following:

3 (a) Inquire of each new patient who is at least 18 years old
4 and less than 45 years old, either verbally or on a written or
5 electronic form, whether the patient is interested in information
6 on donating bone marrow and, upon the patient's request, provide
7 the patient with information on becoming a bone marrow donor. If
8 information is provided under this subdivision, it must include
9 contact information for bone marrow donation programs in this

1 state.

2 (b) Inquire of each new patient, either verbally or on a
3 written or electronic form, whether the patient is interested in
4 information on the organ and tissue donor registry and, upon the
5 patient's request, provide the patient with educational materials
6 explaining the right to make an anatomical gift under part 101,
7 information describing the organ and tissue donor registry, and
8 information on how to have the patient's name placed in the organ
9 and tissue donor registry. If information is provided under this
10 subdivision, it must include contact information for this state's
11 federally designated organ procurement organization or its
12 successor organization as described in section 10120.

13 (2) The materials and information described in this section
14 may be provided to the patient orally or in written or electronic
15 form.

16 (3) As used in this section:

17 (a) "Anatomical gift" means that term as defined in section
18 10102.

19 (b) "Organ and tissue donor registry" means the donor registry
20 as that term is defined in section 10102.